Federal Foreign Office

German citizenship

FAQ ?!

German citizenship

German citizenship law is relatively complicated. The following questions and answers can therefore only cover the issues which currently dominate the inquiries received by the help desk.

- Which authority is responsible for me in matters relating to citizenship?
- I think I am still a German citizen but cannot prove it. What can I do?

We hope you understand that we cannot respond individually to questions featured in this catalogue.

Please contact the Help Desk if you haven't found the answer to your question.

You are living abroad and you are in need of consular information? Please contact the German
mission which is competent for your place of residence.

- German missions abroad: Countries A to Z

As parents we are of different nationalities (one parent being a German national) and live abroad. How does our child receive German citizenship?

German citizenship is attained at birth if at least one parent is German. If you are not married and only the father is a German national, the child only attains German citizenship if the father effectively recognizes his paternity according to German law.

German nationals born abroad on or after 1 January 2000 should note that any children of theirs born outside Germany will acquire German nationality only if the parents report the birth to the competent German mission abroad before the child's first birthday.

Information on applying for a passport and, where applicable, on acknowledgement of paternity is available at the German mission covering your place of residence.

German missions abroad: Countries A to Z

My ancestors were German nationals / One parent was born in Germany. Can I get a German passport?

German passports are only issued to German citizens. Having German ancestors resp. the fact that your father and/or your mother was/were born in Germany is unfortunately not enough to attain German citizenship. Rather, your father and/or mother have to have been German citizens at the time of your birth. If you were born before 1 January 1975 and your parents were married, you only attained German citizenship if your father was German at the time of your birth or if your parents submitted a declaration by 31 December 1977 stating they wanted German citizenship for their child.

- Law on Nationality

I am married to a German national. Can I apply for German citizenship?

Provided certain other conditions are met you have the right to naturalization after you have been legally resident in the Federal Republic of Germany for three years. However you have to have been married for at least two years.

For further advice and information, please contact the competent local German authority.

As well as German nationality, our child has had a second nationality since birth. Does our child have to choose between the two in later life?

No, as far as German law is concerned, if your child automatically had two nationalities at birth, he/she does not have to decide between the two at a later stage. Your child is therefore a permanent holder of dual nationality. In some cases, the law of the other country may however dictate a need to choose. You are asked to contact the competent agency of the other country in such cases (interior ministry or authorities or the foreign missions of the other country).

Neither of us have German nationality, but we have lived for years in Germany. Can our child get German nationality?

Yes. A child born in Germany (on or after 1 January 2000) can acquire German nationality, even if neither of the parents is German. The only precondition is that one of the parents has been legally and habitually resident in Germany for eight years and has a permanent

right of residence. The child must however decide at some stage between the age of 18 and 23 whether to retain his/her German nationality or another nationality acquired by birth.

For further advice, please contact the competent authorities at your place of residence.

I was born in Germany. My parents were not German nationals. Can I get a German passport?

A child can attain German citizenship by being born in Germany even if neither parent is German. However this only applies to children born on or after 1 January 2000.

A further condition is that one parent has been legally resident in Germany for eight years and has a right of unlimited residence or for three years an unlimited residence permit. Children who become German citizens in this way must however decide between the age of 18 and 23 whether they want to retain German citizenship or the citizenship of their parents.

Can I become a German citizen even though I am not living in Germany

Yes, in principle this is possible. Mastery of the German language and proof of ties to Germany are just as important as the prognosis that the applicant for citizenship will not require state funds for maintenance if he/she moves to Germany. There are a number of other conditions.

You are advised to contact the competent German mission abroad to avoid submitting an application that cannot be accepted but which is nevertheless subject to a fee.

German missions abroad: Countries A to Z

How can German citizenship be lost?

A German national who applies for and receives a foreign nationality (except the nationality of one of the EU Member States or Switzerland) loses his/her German nationality. The only way of preventing the loss of German citizenship is if the applicant obtained permission to retain the nationality by the German authorities prior to acquiring the foreign nationality.

German nationals required to perform military service who voluntarily enter the forces or comparable armed groups of a country of which they are also a national without the consent of the district draft board lose their German nationality automatically.

For further advice, please contact the competent German mission covering your place of residence.

German missions abroad: Countries A to Z

I lost my German citizenship because I acquired a foreign nationality. Can I get my German citizenship back?

In principle it is possible for former Germans to be renaturalized. Key conditions include the ability to support oneself, mastery of the German language and proof of ties to Germany. Generally health insurance for Germany is also required. Chances are very much increased by a readiness to relinquish all previous nationalities.

If the applicant is not prepared to do so, he/she has to outline in detail the reasons for not relinquishing his/her current nationality in line with the retention permit.

Such a naturalization does not automatically include children, grandchildren and other descendants. Separate applications have to be submitted and the above criteria apply. For further advice, please contact the competent German mission covering your place of residence.

German missions abroad: Countries A to Z

I/my ancestors was/were denationalized by the National Socialists. Can I get my German citizenship back?

Yes, victims of National Socialist denationalization measures and their descendants have the right to be renationalized in line with Article 116 (2) of the Basic Law even if this means multiple nationality. There is no need to prove knowledge of the German language. Nevertheless it is examined whether the German nationality of the ancestor could have been lost for reasons unrelated to National Socialism. Were this the case, the descendants would have no right to German citizenship.

For further advice, please contact the competent German mission covering your place of residence.

German missions abroad: Countries A to Z